

**FEDERAL BUREAU OF INVESTIGATION****FINANCE DIVISION | PROCUREMENT SECTION****JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND
OPEN COMPETITION (JOFOC)**

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION IN ACCORDANCE WITH
TITLE 41 U.S.C. 3304 (A) (1)

UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

Requisition Number: SHOP-PR-25-001403

Date: 12 March 2025

Estimated Contract Dollar Value: \$ _____

1. Identification of the agency and contracting activity.

The U.S. Department of Justice (DOJ), Federal Bureau of Investigation (FBI), Procurement Section (PS), National Acquisition Programs Unit (NAPU), has prepared this justification for other than full and open competition for the acquisition of an Advanced Instruments, LLC Level 4 Service Agreement on behalf of the Laboratory Division (LD), Biometrics Analysis Section (BAS), CODIS Unit.

2. The nature and/or description of the action being approved, i.e., sole source, limited competition, establishment of a new source, etc.

In accordance with a statutory exception to the fair opportunity process, the FBI contemplates the award of a one-time, one-year, sole-source, firm-fixed-price, commercial services, purchase order to Advanced Instruments, LLC, [CAGE Code 0EFP6], Two Technology Way, Norwood, Massachusetts, 02062 for an Artel Multichannel Verification System (MVS) Level 4 Service Agreement.

3. A description of the supplies or services required to meet the agency's needs.

The Federal DNA Database Unit (FDDU) and the DNA Casework Unit (DCU) receive many DNA samples to process. To facilitate efficient and timely processing of these DNA samples, liquid handling robots are used to prepare sample plates for the quantitation, amplification, and capillary electrophoresis steps of the process. FDDU and DCU utilize liquid handling robots to

prepare samples plates for these steps. These robots pipette amounts of reagents and samples into those plates. To ensure that the robots are functioning correctly, the accuracy of the instruments' pipetting must be checked on a quarterly basis. The Advanced Instruments MVS-500 allows quick and efficient verification of the pipetting precision and accuracy of the robots.

Advanced Instruments, LLC is the manufacturer of the Artel Multichannel Verification System (MVS). The Advanced Instruments, LLC calibration systems is utilized to ensure the accuracy and precision of instrumentation that is used by the Laboratory Division to pipette reagents in the processing of DNA samples. The MVS-500 is used to ensure compliance with the FBI's Quality Assurance Standards (QAS), and for that reason it requires preventative maintenance and service by trained Advanced Instruments, LLC personnel.

The MVS Level Four (4) Service Agreement includes annual calibrator plate recertification, preventative maintenance services, travel costs to Huntsville and/or Quantico, and a one-year extended warranty coverage for three (3) instruments.

The three (3) MVS instruments were procured via:

The FBI awarded Purchase Order (PO) Number 15F06724P0000761 to Advanced Instruments, LLC on May 15th, 2024.

The FBI awarded PO Number 15F06721P0003020 to Artel, Inc. on April 14th, 2021.

The FBI awarded PO Number DJF171200P0007592 to Artel, Inc. on September 21st, 2017.

Please note: Advanced Instruments, LLC acquired Artel, Inc. May 2022.

4. The statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.302-1 entitled, *"Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."*

5. Demonstrate the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

Advanced Instruments, LLC manufactures, markets, and is the sole-source provider of the Multichannel Verification System (MVS), ArtelWare Software, MVS instrument, consumables, usage training, MVS Preventative Maintenance (PM) services, and warranty programs for their products. There are no authorized resellers. Moreover, there are no authorized third-party vendors who can provide MVS-500 instrument validation services.

The on-site PM service includes lamp/bulb replacement, operational qualification, reverification, and release testing of the unit for compliance.

The FBI awarded PO Number 15F06724P0000435 to Advanced Instruments, LLC on January 30th, 2024, for the annual plate calibrator plate recertification and the MVS Level 4 Service Agreement for one (1) MVS instrument, (\$13,468.00).

The FBI awarded PO Number 15F06724P0000264 to Advanced Instruments, LLC on December 20th, 2023, for the annual plate calibrator recertification and the MVS Level 4 Service Agreement for one (1) MVS instrument, (\$13,550.00).

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

A Notice of Intent (NOI) to award a sole-source Purchase Order (PO) to Advanced Instruments, LLC will be posted on the SAM.gov website. This announcement will also give an opportunity for other vendors to demonstrate their ability to meet the FBI's specific needs through a submission of their technical capabilities and cost information for consideration prior to an award being issued.

7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Prior to issuing an award, the Contracting Officer will determine that the proposed price is fair and reasonable in accordance with FAR 13.106-3.

8. A description of the market research conducted and the results.

No market research was conducted for this effort. Advanced Instruments, LLC is the only company capable of providing a service agreement for the MVS-500 instrument.

9. Any other facts supporting the use of other than full and open competition.

See section 5 above.

10. A listing of any sources that expressed a written interest in the acquisition.

A synopsis will be posted on the SAM.gov website. This synopsis will give an opportunity for other vendors to demonstrate their ability to meet the FBI's specific needs through a submission of technical capabilities and cost information.

11. A statement of any actions the agency may take to remove or overcome any barriers to competition if subsequent acquisitions are anticipated.

The FBI will continue to conduct market surveys and research available through industry shows and technology releases in the form of papers and journals. This will be used to identify potential sources for subsequent acquisitions.

Reviews and Approvals (up to \$750,000.00)

Requestor:

I certify that the facts and representations under my cognizance, which are included in this justification, and which form a basis for this justification, are complete and accurate.

Management and Program Analyst
CODIS Unit
Quantico, Virginia

Date

Contracting Officer:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Bryan Lane
National Acquisition Programs Unit
bvlane@fbi.gov
Quantico, Virginia

Date